

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
ISHMAIL KNIGHT,

Plaintiff,

-against-

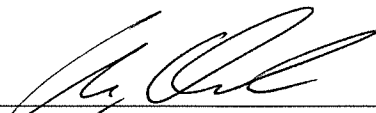
THE CITY OF NEW YORK, DETECTIVE STEPHEN
G. BAROUNIS, POLICE OFFICER JOSHUA P.
NAVARRO and "JOHN DOE 1-5", FICTITIOUS
NAMES INTENDED TO BE POLICE OFFICERS,
EMPLOYEES OF THE NEW YORK CITY POLICE
DEPARTMENT EACH INDIVIDUALLY AND AS
POLICE OFFICERS OF THE NEW YORK CITY
POLICE DEPARTMENT,

Defendants.
-----X

TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on plaintiff's attorney within twenty (20) days after the service of this summons, exclusive of the day of service or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York; and in case of your failure to answer or appear, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Brooklyn, New York
February 1, 2024



ALEXANDER M. DUDELSON, ESQ.
Attorney for Plaintiff
26 Court Street - Suite 2306
Brooklyn, New York 11242
(718) 855-5100

Defendants' Addresses:

THE CITY OF NEW YORK, New York City Law Department,
100 Church Street, New York, New York 10007
DETECTIVE STEVEN G. BAROUNIS, Badge #3718, Warrant Section
POLICE OFFICER JOSHUA P. NAVARRO, Badge #16066, Warrant Section
JOHN DOES 1-5, 70th Precinct, 154 Lawrence Avenue, Brooklyn, New York 11230

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
ISHMAIL KNIGHT,

Plaintiff,

Index No.:

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK,, DETECTIVE STEPHEN
G. BAROUNIS, POLICE OFFICER JOSHUA P.
NAVARRO and “JOHN DOE 1-5”, FICTITIOUS
NAMES INTENDED TO BE POLICE OFFICERS,
EMPLOYEES OF THE NEW YORK CITY POLICE
DEPARTMENT EACH INDIVIDUALLY AND AS
POLICE OFFICERS OF THE NEW YORK CITY
POLICE DEPARTMENT,

Defendants.
-----X

Plaintiff, ISHMAIL KNIGHT by and through his attorney, ALEXANDER M.

DUDELSON, states as follows:

INTRODUCTION

1. This is an action for the wrongful acts of defendants THE CITY OF NEW YORK, DETECTIVE STEPHEN G. BAROUNIS and “JOHN DOE 1-5,” FICTITIOUS NAMES INTENDED TO BE POLICE OFFICERS, EMPLOYEES OF THE NEW YORK CITY POLICE DEPARTMENT EACH INDIVIDUALLY AND AS POLICE OFFICERS OF THE NEW YORK CITY POLICE DEPARTMENT, in violation of plaintiff’s rights secured by 42 U.S.C. Section 1983, the Constitution and laws of the United States, and New York State law.

2. Plaintiff, ISHMAIL KNIGHT, alleges that beginning on or about March 2, 2023, and through all of his court appearances, defendants committed wrongful and illegal acts against

plaintiff, including falsely arresting plaintiff, falsely imprisoning plaintiff, assaulting and battering plaintiff and/or negligently causing physical injury to plaintiff, using excessive force in effecting the arrest of plaintiff, intentionally and/or negligently inflicting emotional distress, negligence in the hiring and retaining of incompetent and unfit Officers, Detectives and Employees, negligence in the training and instruction, and supervision of its Officers, and violating plaintiff's Constitutional and civil rights.

PARTIES

3. At all times relevant hereto, plaintiff ISHMAIL KNIGHT, was and is a citizen of the United States and resident of Kings County, in the City and State of New York.

4. At all times relevant hereto, defendant THE CITY OF NEW YORK was and is a municipality of the State of New York and owns, operates, manages, directs and controls the New York City Police Department, which employs the other named defendants.

5. At all times relevant hereto, defendant DETECTIVE STEPHEN G. BAROUNIS was at all times relevant to this action, a police officer employed by the New York City Police Department, and acting under the color of law. Upon information and belief, defendant DETECTIVE STEPHEN G. BAROUNIS was assigned to the 580 Command of the New York City Police Department, at the time of the occurrences alleged in this complaint. He is being sued in both his individual and official capacities.

6. At all times relevant hereto, Defendant POLICE OFFICER JOSHUA NAVARRO was at all times relevant to this action, a police officer employed by the New York City Police Department, and acting under the color of law. Upon information and belief, Defendant POLICE OFFICER JOSHUA NAVARRO was assigned to the 580 Command of the New York City

Police Department, at the time of the occurrences alleged in this complaint. He is being sued in both his individual and official capacities.

7. At all times relevant hereto, “JOHN DOES 1-5,” FICTITIOUS NAMES INTENDED TO BE POLICE OFFICERS OF THE NEW YORK CITY POLICE DEPARTMENT, were at all times relevant to this action, police officers employed by the New York City Police Department, and acting under the color of state law. Upon information and belief, “JOHN DOE 1-5”, FICTITIOUS NAMES INTENDED TO BE POLICE OFFICERS OF THE NEW YORK CITY POLICE DEPARTMENT were assigned to the 580 Command and the 70th Precinct of the New York City Police Department, at the time of the occurrences alleged in this complaint. They are being sued in both their individual and official capacities.

8. At all times relevant hereto and in all their actions described herein, the defendants were acting under the color of the statutes, ordinances, regulations, policies, customs and usages of the New York City Police Department, and New York City, pursuant to their authority as employees, servants and agents of the New York City Police Department, within the scope of employment and incidental to their otherwise lawful duties and functions as agents, servants and employees.

9. At all times relevant hereto, the CITY OF NEW YORK was responsible for the training of its police officers, and more particularly, Defendants DETECTIVE STEPHEN G. BAROUNIS, POLICE OFFICER JOSHUA NAVARRO and “JOHN DOES 1-5,” FICTITIOUS NAMES INTENDED TO BE POLICE OFFICERS OF THE NEW YORK CITY POLICE DEPARTMENT, the unknown police officers whose identity plaintiffs intend to discover.

10. At all times relevant hereto, the defendant CITY OF NEW YORK was negligent

in the hiring, training, supervision, discipline, retention and promotion of the agents, servants and employees of the New York City Police Department.

11. At all times mentioned herein, the Defendant CITY OF NEW YORK, knew of should have known of the bias, bad judgment, abusive and violent tendencies and other unlawful propensities of the officers involved in the violation of civil right, assault and battery and/or negligently causing physical injury, use of excessive force in effecting arrest, intimidation, false arrest, false imprisonment, malicious prosecution, intentional and/or negligent infliction of emotional distress of plaintiff ISHMAIL KNIGHT.

12. The conduct and injuries complained of herein ensued without any negligent or culpable conduct on the part of the plaintiff Richard Figueroa.

CONDITIONS PRECEDENT

13. Plaintiff ISHMAIL KNIGHT's Notice of Claim was duly filed with the Comptroller's Office of the CITY OF NEW YORK on March 21, 2023; said Notice was filed within (90) days after the causes of the action accrued. More than (30) days have elapsed since the filing of said Notice and this matter has not been settled or otherwise disposed of.

14. Plaintiff ISHMAIL KNIGHT submitted to a hearing pursuant to Section 50-h of the General Municipal Law on May 18, 2023

15. Plaintiff ISHMAIL KNIGHT has duly complied with all of the conditions precedent to the commencement of this cause of action under the circumstances as set forth above.

FACTUAL BACKGROUND

16. At all time relevant herein, Plaintiff was a train operator for the Metropolitan

Transportation Authority.

17. At all times relevant hereon, Plaintiff resided at 50 Westminster Road, Brooklyn, New York with his mother Mona Yates.

18. On March 1, 2023, the Plaintiff was scheduled to work a 5:00 p.m. to 1:00 a.m. shift.

19. On March 2, 2023, after the completion of his shift, the Plaintiff arrived at his apartment located at 50 Westminster Road, Brooklyn, New York at approximately 2:00 a.m.

20. At approximately 4:30 a.m., the Plaintiff heard Defendants DETECTIVE STEPHEN G. BAROUNIS and "JOHN DOE 1" knocking on the door of his apartment.

21. Defendants DETECTIVE STEPHEN G. BAROUNIS and "JOHN DOE 1" stated that they were looking for Quasim Knight, the Plaintiff's brother.

22. Mona Yates advised Defendants DETECTIVE STEPHEN G. BAROUNIS and "JOHN DOE 1" that Quasim Knight did not reside at the premises.

23. Upon information and belief, Defendant "JOHN DOE 1" started kicking the door to the Plaintiff's apartment.

24. Upon information and belief, Defendant DETECTIVE STEPHEN G. BAROUNIS ran down the hall and charged into the front door of the apartment seven time with the side of his body.

25. Upon information and belief, Defendant DETECTIVE STEPHEN G. BAROUNIS kicked the front door approximately eight times.

26. That Defendant DETECTIVE STEPHEN G. BAROUNIS broke the hinges and lock on the front door to the apartment.

27. That Mona Yates then opened the front door and Defendants DETECTIVE STEPHEN G. BAROUNIS and “JOHN DOE 1” entered the apartment.

28. That Defendant DETECTIVE STEPHEN G. BAROUNIS went towards the Plaintiff’s bedroom door.

29. The Plaintiff opened his bedroom door and Defendant DETECTIVE STEPHEN G. BAROUNIS charged at the Plaintiff and started to punch the Plaintiff multiple times while the Plaintiff was on the floor.

30. Defendant DETECTIVE STEPHEN G. BAROUNIS forced one of the Plaintiff’s arms behind his back and put his knee on the back of Plaintiff’s neck.

31. Defendant DETECTIVE STEPHEN G. BAROUNIS continued to punch the Plaintiff on the head.

32. Mona Yates entered the Plaintiff’s bedroom and stated that the Plaintiff was not Quasim Knight.

33. Defendant DETECTIVE STEPHEN G. BAROUNIS the advised Defendant “JOHN DOE 1” that he “lost his clip.”

34. Defendant “JOHN DOE 1” then looked out the window and stated “I see him outside.”

35. The Plaintiff then got up, put on his clothing, and went outside to report Defendant DETECTIVE STEPHEN G. BAROUNIS’ conduct.

36. The Plaintiff saw a New York Police Department marked vehicle and advised the officers what had occurred.

37. Several other New York Police Department vehicle arrived at the scene along

with Defendants DETECTIVE STEPHEN G. BAROUNIS and “JOHN DOE 1.”

38. The Plaintiff asked Defendant DETECTIVE STEPHEN G. BAROUNIS for his badge number, but Defendant DETECTIVE STEPHEN G. BAROUNIS refused the request.

39. Defendant DETECTIVE STEPHEN G. BAROUNIS asked the Plaintiff for his identification.

40. Mona Yates, who was now outside, went back to the apartment to retrieve the Plaintiff’s drivers license and MTA identification.

41. Defendants DETECTIVE STEPHEN G. BAROUNIS and “JOHN DOE 1-5” advised the Plaintiff that he was going to be taken the 70th precinct for an identity check.

42. At the precinct, Defendant DETECTIVE STEPHEN G. BAROUNIS advised the Plaintiff that if he did not get Quasim Knight to come to the precinct, the Plaintiff would be charged with assaulting a police officer.

43. Plaintiff was then relocated to Central Booking in Brooklyn, New York.

44. While Plaintiff was in the Defendants’ custody, Defendant DETECTIVE STEPHEN G. BAROUNIS and POLICE OFFICER JOSHUA NAVARRO wrote up paperwork stating that Plaintiff prevented Defendant DETECTIVE STEPHEN G. BAROUNIS from arresting Quasim Knight and assaulted Defendant DETECTIVE STEPHEN G. BAROUNIS causing injury to his ribs.

45. These allegations were false and Defendant DETECTIVE STEPHEN G. BAROUNIS and POLICE OFFICER JOSHUA NAVARRO knew the statements to be false at the time that they were made.

46. Defendants DETECTIVE STEPHEN G. BAROUNIS and POLICE OFFICER

JOSHUA NAVARRO forwarded these false allegations to the Kings County District Attorney's office ("KCDA") in order to justify the arrest and to persuade the KCDA to commence the Plaintiff's criminal prosecution.

47. Defendants DETECTIVE STEPHEN G. BAROUNIS and POLICE OFFICER JOSHUA NAVARRO knew and understood that the KCDA, in evaluating whether to commence a criminal prosecution against the Plaintiff, were relying on the truthfulness of his claims and statements, and assumed that all of these factual statements and claims were truthful in all respects.

48. While at central booking, the Plaintiff continued to suffer pain from the attack of Defendant DETECTIVE STEPHEN G. BAROUNIS.

49. The Plaintiff spent approximately twenty-four hours in unlawful custody.

50. On March 3, 2023, Plaintiff was arraigned and charged with violating Penal Law § 120.05(3), Assault in the Second Degree; Penal Law § 120.00(1), Assault in the Third Degree; Penal Law § 195.05, Obstructing Governmental Administration in the Second Degree; Penal Law § 110/120.00(1), Attempted Assault in the Third Degree; Penal Law § 120.15, Menacing in the Third Degree; and Penal Law § 240.26(1), Harassment in the Second Degree.

51. On May 12, 2023, the case was called in AP1F in the Supreme Court of the State of New York, County of Kings, and the People dismissed the felony charge.

52. On August 18, 2023, the remaining misdemeanor counts were dismissed.

53. As a direct and proximate result of the actions of the police officer defendants, Plaintiff was falsely arrested for the aforementioned charges, all charges that the plaintiff is wholly innocent of.

54. Defendants DETECTIVE STEPHEN G. BAROUNIS and POLICE OFFICER JOSHUA NAVARRO and “JOHN DOES 1-5” acted with actual malice in arresting Plaintiff, and prosecuted on charges that defendants know are false.

55. Defendants DETECTIVE STEPHEN G. BAROUNIS and POLICE OFFICER JOSHUA NAVARRO and “JOHN DOES 1-5” brought the charges against Plaintiff and purposely misused the police powers and the courts to arrest, harass, intimidate, assault and batter, imprison and prosecute plaintiff for criminal charges in an effort to immunize themselves for their unlawful and unconstitutional arrest of plaintiff and their use of excessive force and gratuitous acts of violence against plaintiff.

56. To date, as a direct result and proximate result of all defendants’ actions, Plaintiff has suffered the loss of his liberty, physical assault and battery, loss of income, and continues to suffer physical and emotional pain, permanent damage to his good name, shame, degradation, humiliation, indignity, stress, loss of personal security and liberty, serious mental anguish, psychological and emotional distress, and various other physical and psychological injuries.

57. As a direct and proximate result of Defendants’ actions, Plaintiff was arrested and detained for criminal charges without just cause.

58. As a direct and proximate cause of defendants’ actions, Plaintiff was deprived of rights, privileges and immunities under the Fourth, Eighth and Fourteenth Amendments to the United States Constitution and the laws of the State of New York.

59. Defendant CITY OF NEW YORK, as a matter of policy and practice, has with deliberate indifference failed to adequately discipline, train or otherwise direct police officers, including the defendant police officers, with regard to the rights of residents, citizens, and

visitors to the United States of America, thereby causing the defendant officers in this case to engage in the unlawful conduct described above.

60. Defendant CITY OF NEW YORK, as a matter of policy and practice, has with deliberate indifference failed to properly sanction or discipline police officers, including the defendant in this case, for violations of the constitutional rights of the persons within its domain, thereby causing police, including defendants in this case, to engage in the unlawful conduct described above.

61. Defendant CITY OF NEW YORK, in its policies and practices, has with deliberate indifference, failed to follow procedures for supervising and removing, when appropriate, unstable, malicious, violent, abusive, dishonest and biased police officers from their duties.

AS AND FOR A FIRST CAUSE OF ACTION: VIOLATION OF CONSTITUTIONAL
RIGHTS: THE EXCESSIVE USE OF FORCE
(Defendant DETECTIVE STEPHEN G. BAROUNIS)

62. Plaintiffs repeat and reallege the allegations contained in paragraphs 1 - 61 of this complaint, as though fully set forth herein.

63. On the 2nd day of March, 2023, at approximately 4:30 a.m., at 50 Westminister Road, in the County of Kings, City and State of New York, the Defendant DETECTIVE STEPHEN G. BAROUNIS, without just cause or provocation and in violation of proper and appropriate police conduct, and with maliciousness and violence, used excessive force in against Plaintiff ISHMAIL KNIGHT such that plaintiff ISHMAIL KNIGHT was injured in and about his legs, arms, neck and head, thereby causing further serious injury to plaintiff ISHMAIL KNIGHT.

64. By reason of the aforesaid, Plaintiff suffered great physical damage and pain,

intimidation and fear, and conscious pain and suffering, and was otherwise damaged.

65. The acts and conduct of Defendant DETECTIVE STEPHEN G. BAROUNIS, as alleged in the foregoing paragraphs constitute the excessive use of force in violation of the Eighth Amendment to the United States Constitution and 42 U.S.C. Section 1983.

AS AND FOR A SECOND CAUSE OF ACTION: VIOLATION OF CONSTITUTIONAL RIGHTS DEPRIVATION OF LIBERTY BY FALSE ARREST, FALSE IMPRISONMENT AND MALICIOUS PROSECUTION
(DETECTIVE STEPHEN G. BAROUNIS, POLICE OFFICER JOSHUA NAVARRO and "JOHN DOES 1-5)

66. Plaintiffs repeat and reallege the allegations contained in paragraphs 1 - 65 of this complaint as though fully set forth herein.

67. The actions of Defendants DETECTIVE STEPHEN G. BAROUNIS and POLICE OFFICER JOSHUA NAVARRO and "JOHN DOES 1-5, POLICE OFFICER JOSHUA NAVARRO and "JOHN DOES 1-5," a members of the New York City Police Department, and acting under the color of state law, deprived Plaintiff of his rights, privileges and immunities under the laws of the Constitution of the United States of America, in particular the rights to liberty, to be secure in his person and property, to due process under the law, and the concomitant rights to be free from false arrest, false imprisonment, malicious prosecution, and the intentional and/or negligent infliction of emotional distress.

68. By these actions, the Defendants have deprived Plaintiff of his rights secured by the Fourth and Fourteenth Amendments to the United States Constitution, in violation of 42 U.S.C. Section 1983, for which defendants are liable.

69. As a result of the foregoing, Plaintiff was deprived of liberty, sustained great emotional injuries, was subject to great humiliation, and was otherwise harmed, damaged and

injured.

AS AND FOR A THIRD CAUSE OF ACTION:
VIOLATION OF CONSTITUTIONAL RIGHTS
(Defendant CITY OF NEW YORK)

70. Plaintiffs repeat and reallege the allegations contained in paragraphs 1 - 69 of this complaint as though fully set forth herein.

71. At all times material to this complaint, defendant CITY OF NEW YORK, acting through its police department, the New York City Police Department, has in effect de facto policies, practices, customs and usages that were a direct and proximate cause of the unconstitutional conduct of the defendant officers.

72. These policies, practices and customs include, inter alia, the use of excessive force in making arrests, charging a defendant with Penal Law § 120.05(3), Assault in the Second Degree; Penal Law § 120.00(1), Assault in the Third Degree; Penal Law § 195.05, Obstructing Governmental Administration in the Second Degree; Penal Law § 110/120.00(1), Attempted Assault in the Third Degree; Penal Law § 120.15, Menacing in the Third Degree; and Penal Law § 240.26(1), Harassment in the Second Degree.

73. Upon information and belief, defendant CITY OF NEW YORK failed to effectively screen, hire, train, supervise and discipline its detectives, sergeants, officers and other employees, including the defendant detectives, sergeant and employees herein, with respect to their propensity to use their police power in an unduly aggressive and violent manner, and to have a propensity to use excessive force in executing their police duties, and for their failure to protect citizens from unconstitutional conduct of other detectives, sergeants and employees, thereby permitting and allowing the defendant detectives, officers, sergeants and employees

herein to be in a position to maliciously assault and batter the Plaintiff, without cause or justification, in a demonstration of the excessive force in effecting the arrest of Plaintiff, that was so clearly grossly disproportionate under the circumstances, that it amounted to an abuse of official power that shocks the conscience, and to otherwise cause them injury and violate their constitutional rights, and/or permit these actions to take place with their knowledge and/or consent.

74. Upon information and belief, defendant CITY OF NEW YORK maintained an inadequate structure for risk containment and stress management relative to its detectives, sergeants, officers and employees, and failed to create proper means of containing such risk and managing such stress. Inter alia, the structure was deficient, at the time of selection of detectives, sergeants, officers and employees and thereafter during their employment, in its ability to evaluate and exchange information within the command structure of the police department about the performance of individual detectives, sergeants, officers and employees; in its training of supervisory personnel to effectively and adequately evaluate performance of an officer or employee; and in its ability to otherwise put the command and/or staff structure on notice that an individual or individuals were at significant levels of risk to the public at large. The effect of this was to permit detectives, sergeants, officers and employees to function at levels of significant and substantial risk to the public in general.

75. As a result of the foregoing conscious policies, practices, customs and/or usages, defendant CITY OF NEW YORK has permitted and allowed the employment and retention of individuals as detectives, sergeants, officers and employees whose individual circumstances place the public or segments thereof at substantial risk of being the victims of unlawful and/or

unreasonable behavior. Such policies, practices, customs and/or usages are a direct and proximate cause of the conduct alleged herein and otherwise a direct and proximate cause of the injuries to the plaintiff herein.

76. The acts and conduct of defendant CITY OF NEW YORK as set forth above, deprived Plaintiff of his rights, privileges and immunities under the laws and Constitution of the Unites States; in particular the rights to be secure in his person and property, to due process under the law, and the right to be free from unlawful seizure, false arrest and false imprisonment, and from malicious prosecution, assault and battery, the excessive use of physical force intended to cause physical injury, and the intentional and/or negligent infliction of emotional distress.

77. The acts and conduct of defendant CITY OF NEW YORK as set forth above, deprived Plaintiff of his rights, privileges and immunities under the laws and Constitution of the Unites States; in particular the right to be free from assault and battery, the excessive use of physical force intended to cause physical injury, and the intentional and/or negligent infliction of emotional distress.

78. By these actions, defendant CITY OF NEW YORK has deprived Plaintiff of rights secured by the Fourth, Eighth and Fourteenth Amendments to the Unites States Constitution, in violation of 42 U.S.C. Section 1983.

79. As a result of the foregoing, Plaintiff sustained great physical injuries, great emotional injuries, were subjected to extreme humiliation, and were otherwise harmed, damaged and injured.

AS AND FOR A FOURTH CAUSE OF ACION:
CONSPIRACY TO VIOLATE CIVIL RIGHTS
(Defendants DETECTIVE STEPHEN G. BAROUNIS and POLICE OFFICER JOSHUA

NAVARRO and “JOHN DOES 1-5”)

80. Plaintiffs repeat and reallege the allegations contained in paragraphs 1 - 79 of this complaint as though fully set forth herein.

81. Defendants DETECTIVE STEPHEN G. BAROUNIS and POLICE OFFICER JOSHUA NAVARRO and “JOHN DOES 1-5,” under the color, conspired with each other to undertake a course of conduct to injure, oppress, threaten, harass and intimidate Plaintiff, denying him free exercise and enjoyment of the rights and privileges and equal protection of the law secured to him by the Constitution, including the rights to be free from excessive force.

82. The aforementioned defendants, under the color of law, conspired with each other to undertake a course of conduct to bear false witness and/or to bear false testimony and/or to produce false evidence in an effort, in violation of Plaintiff constitutional rights including the right to due process, to have plaintiff wrongfully prosecuted and convicted of a crime that he did not commit.

AS AND FOR A FIFTH CAUSE OF ACTION:
NEGLIGENCE UNDER THE LAWS OF THE STATE OF NEW YORK
(All Defendants)

83. Plaintiffs repeat and reallege the allegations contained in paragraphs 1 - 82 of this complaint as though fully set forth herein.

84. Defendants owed a duty of care to Plaintiff.

85. To the extent defendants claim that the injuries to Plaintiff by the defendant police officers was unintentionally caused and that the force used by the defendants against his was unintentional, then the defendants breached that duty of care.

86. As a direct and proximate result of such acts, defendants deprived Plaintiff of his

rights under the laws of the State of New York.

87. All of the foregoing occurred without any fault or provocation by Plaintiff.

88. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

89. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

90. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

AS AND FOR A SIXTH CAUSE OF ACTION:
ASSAULT UNDER THE LAWS OF THE STATE OF NEW YORK
(Defendant DETECTIVE STEPHEN G. BAROUNIS and CITY OF NEW YORK)

91. Plaintiffs repeat and reallege the allegations contained in paragraphs 1 - 90 of this complaint as though fully set forth herein.

92. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously assaulted Plaintiff in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the Plaintiff, that such acts caused apprehension of such contact in the Plaintiff.

93. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

94. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department,

which are therefore responsible for their conduct.

95. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

96. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

AS AND FOR A SEVENTH CAUSE OF ACTION:
BATTERY UNDER THE LAWS OF THE STATE OF NEW YORK
(Defendant DETECTIVE STEPHEN G. BAROUNIS and CITY OF NEW YORK)

97. Plaintiffs repeat and reallege the allegations contained in paragraphs 1 - 96 of this complaint as though fully set forth herein.

98. The Plaintiff repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

99. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously battered Plaintiff, when they, in a hostile and/or offensive manner struck the Plaintiff on the ground with the intention of causing harmful and/or offensive bodily contact to the Plaintiff and caused such battery.

100. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

101. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

102. The City, as the employer of the officer defendants, is responsible for their

wrongdoing under the doctrine of respondeat superior.

103. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

AS AND FOR AN EIGHTH CAUSE OF ACTION:
NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS
(All Defendants)

104. The Plaintiff repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

105. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to Plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiff and violated Plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

106. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiff and violated Plaintiff's statutory and common law rights as guaranteed Plaintiff by the laws and Constitution of the State of New York.

107. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

108. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

109. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior. 91. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

AS AND FOR A NINTH CAUSE OF ACTION:
NEGLIGENT HIRING, RETENTION, TRAINING AND SUPERVISION
(CITY OF NEW YORK)

110. The Plaintiff repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

111. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

112. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional and psychological injuries.

AS AND FOR A TENTH CAUSE OF ACTION
(JOHN DOES 1-5)

113. The Plaintiff repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

114. The defendants that did not physically touch Plaintiff but were present when other officers violated Plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf

of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

115. Defendants failed to intervene to prevent the unlawful conduct described herein.

116. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

117. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

118. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

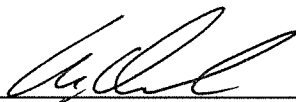
119. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

PRAYER FOR RELIEF

WHEREFORE, plaintiff ISHMAIL KNIGHT requests the following relief jointly and severally as against all of the Defendants:

1. Award compensatory damages in an amount to be determined at trial;
2. Award punitive damages in an amount to be determined at trial;
3. Disbursements, costs and attorney's fees; and
4. For such other further relief that this Court may deem just and proper under the circumstances.

Dated: Brooklyn, New York
January 26, 2023



ALEXANDER M. DUDELSON, ESQ.
Attorneys for Plaintiffs
26 Court Street - Suite 2306
Brooklyn, New York 11242
(718) 855-5100

VERIFICATION

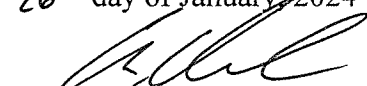
STATE OF NEW YORK)
 : ss.:
COUNTY OF KINGS)

ISHMAIL KNIGHT, being duly sworn, say and depose to be true and correct, under the penalties of perjury, the following:

I am the Plaintiff in the above entitled action, and have read the foregoing Verified Complaint and know the contents thereof, and the same is true of my own knowledge, except as to matters therein stated to be alleged upon information and belief, and as to those matters I believe it to be true.


ISHMAIL KNIGHT

Sworn to before me this
26 day of January 2024


Notary Public

ALEXANDER DUDELSON
Notary Public, State of New York
No. 02DU6107380
Qualified in New York County
Commission Expires 03/29/20____